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in favour of his own daughter on the basis of the said revoked general power of attorney. It is alleged against the first respondent that he had no right over the property and yet he had executed a document in favour of the second respondent without any authority with an intention to cause loss to the complainant and to cheat him. It was alleged against the second respondent that she was well aware that the first respondent was not competent to sell the property so as to defraud and cheat the complainant and, therefore, she also was liable to be punished under Sections 464, 423, 420 read with Section 34 IPC. It was not for the learned Judge at the stage of investigation to examine the nature of the transaction and further to examine as to whether any offence was actually committed by the accused persons or not. At that stage the only inquiry which could have been made was as to whether the complaint or FIR did contain allegations of any offence. Whether those offences were made out, even prima facie, could not have been examined at that stage as the investigation was pending then. We, therefore, do not agree with the learned Single Judge that FIR was liable to be quashed. We also do not agree with the learned Judge that there are no ingredients of the offences complained of in FIR and this was a civil dispute. However, we do not wish to go deeper into that question. Our prima facie examination satisfies us that there were ingredients of offences complained of and, therefore, at that stage the High Court could not have quashed FIR as well as the investigation. The appeal, therefore, has to be allowed, setting aside the order of the learned Single Judge.

9. This appeal is accordingly allowed and the order of the learned Single Judge is set aside.

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(BEFORE DR. ARIJIT PASAYAT AND R.V. RAVEENDRAN, JJ.)

SHAJAHAN AND OTHERS . . . Appellants;

Versus

STATE OF KERALA AND ANOTHER . . . Respondents.

Criminal Appeal No. 262 of 2007[†], decided on February 26, 2007

A. Criminal Trial — Circumstantial evidence — Injuries on accused — Non-explanation of — Effect — Injury report showing that injuries suffered by accused were of a very minor nature and no case was instituted against deceased or PWs therefor — Stand by accused that he was attacked by iron rods, on facts, ruled out — Non-explanation of injuries suffered by accused, in such cases, inconsequential — Case law discussed (Paras 7, 10 and 11)

Mohar Rai v. State of Bihar, AIR 1968 SC 1281 : (1968) 3 SCR 525 : 1968 Cri LJ 1479; *Vijayee Singh v. State of U.P.*, (1990) 3 SCC 190 : 1990 SCC (Cri) 378 : AIR 1990 SC 1459; *Ramlagan Singh v. State of Bihar*, (1973) 3 SCC 881 : 1973 SCC (Cri) 563 : AIR 1972 SC 2593; *Hare Krishna Singh v. State of Bihar*, (1988) 2 SCC 95 : 1988 SCC (Cri) 279 : AIR 1988 SC 863, *cited*

[†] Arising out of SLP (Crl.) No. 3154 of 2006. From the Judgment and Final Order dated 20-1-2006 of the High Court of Kerala at Ernakulam in Crl. A. No. 468 of 1997

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Surendra Paswan v. State of Jharkhand, (2003) 12 SCC 360 : 2004 SCC (Cri) Supp 415 : (2003) 8 Supreme 476; *Lakshmi Singh v. State of Bihar*, (1976) 4 SCC 394 : 1976 SCC (Cri) 671; *Anil Kumar v. State of U.P.*, (2004) 13 SCC 257 : 2005 SCC (Cri) 178, *relied on*

a

B. Penal Code, 1860 — Ss. 96 & 97 and 102 — Right of private defence — Plea of — Sustainability — Extreme enmity between parties — A-1 alleged to have caught hold of legs of deceased facilitating A-2 in stabbing him; A-2 not only stabbing the deceased but also inflicting injuries on PW 4; A-3 assaulting deceased, A-4 assaulting deceased and also injuring PW 5 —
b High Court in appeal, maintaining conviction of A-1, A-3 and A-4 under S. 323 r/w S. 34 but converting conviction of A-2 from S. 302 to S. 304 Pt. II, while maintaining his conviction under S. 324 — Incident occurring on property of accused — Submission by appellants that High Court had accepted right of private defence up to a certain extent but wrongly observed that appellants continued attack which was factually wrong as only one blow was given — Reiterating the various principles governing law
c of private defence that it was essentially a defensive right and did not include right to launch an offensive, particularly when need to defend no longer survived, held, High Court's judgment does not suffer from any infirmity to warrant interference — Case law discussed (Paras 12 and 13)

d

Munshi Ram v. Delhi Admn., AIR 1968 SC 702 : 1968 Cri LJ 806; *State of Gujarat v. Bai Fatima*, (1975) 2 SCC 7 : 1975 SCC (Cri) 384 : AIR 1975 SC 1478; *State of U.P. v. Mohd. Musheer Khan*, (1977) 3 SCC 562 : 1977 SCC (Cri) 565 : AIR 1977 SC 2226; *Mohinder Pal Jolly v. State of Punjab*, (1979) 3 SCC 30 : 1979 SCC (Cri) 635 : AIR 1979 SC 577; *Salim Zia v. State of U.P.*, (1979) 2 SCC 648 : 1979 SCC (Cri) 568 : AIR 1979 SC 391; *Jai Dev v. State of Punjab*, AIR 1963 SC 612 : (1963) 1 Cri LJ 495; *Biran Singh v. State of Bihar*, (1975) 4 SCC 161 : 1975 SCC (Cri) 454 : AIR 1975 SC 87; *Wassan Singh v. State of Punjab*, (1996) 1 SCC 458 : 1996 SCC (Cri) 119; *Sekar v. State*, (2002) 8 SCC 354 : 2003 SCC (Cri) 16; *Buta Singh v. State of Punjab*, (1991) 2 SCC 612 : 1991 SCC (Cri) 494 : AIR 1991 SC 1316; *Vidhya Singh v. State of M.P.*, (1971) 3 SCC 244 : 1971 SCC (Cri) 469 : AIR 1971 SC 1857, *cited*

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State of M.P. v. Ramesh, (2005) 9 SCC 705 : 2005 SCC (Cri) 1443, *relied on*
Russel on Crime, 11th Edn., Vol. I, p. 49, *cited*

Appeal dismissed

P-M/A/35809/SR

Advocates who appeared in this case :

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Shabu Sreedharan, R. Satish and Abhilash S. Francis, Advocates, for the Appellants;
G. Prakash, Advocate, for the Respondents.

Chronological list of cases cited

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3. (2003) 12 SCC 360 : 2004 SCC (Cri) Supp 415 : (2003) 8 Supreme 476, *Surendra Paswan v. State of Jharkhand* 101d-e
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15. (1973) 3 SCC 881 : 1973 SCC (Cri) 563 : AIR 1972 SC 2593, *Ramlagan Singh v. State of Bihar* 101a
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17. AIR 1968 SC 1281 : (1968) 3 SCR 525 : 1968 Cri LJ 1479, *Mohar Rai v. State of Bihar* 99h, 100b
18. AIR 1968 SC 702 : 1968 Cri LJ 806, *Munshi Ram v. Delhi Admn.* 102d-e
19. AIR 1963 SC 612 : (1963) 1 Cri LJ 495, *Jai Dev v. State of Punjab* 103h

The Judgment of the Court was delivered by

DR. ARIJIT PASAYAT, J.— Leave granted.

2. The appellants call into question the legality of the judgment rendered by a Division Bench of the Kerala High Court while partially altering the conviction of Nujum (Appellant 2) who is, hereinafter referred to for the sake of convenience as A-2 and maintaining the conviction of Shajahan (Appellant 1, for short A-1), Manzoor (A-3) and Musthafa (Appellant 4, for short A-4) under Section 323 read with Section 34 IPC. A-2 was convicted in terms of Section 304 Part II of the Penal Code, 1860 (in short “IPC”) instead of conviction under Section 302 IPC by the trial court, and sentenced to undergo rigorous imprisonment for five years. The conviction of A-2 and the sentence for offence, punishable under Section 324 Part I IPC, was not interfered with.

3. The prosecution version as unfolded during trial was as follows:

The accused who are closely related to each other were harbouring extreme enmity towards Ashraf (PW 5) and his younger brother Abdul Samad (hereinafter referred to as “the deceased”). On 18-9-1994 at or about 1.50 p.m. at Kulasekharapuram in Adinadu Village, Punnakulam Muri and to the south of Puthenthervuvu junction near the eastern boundary of the paramba of Laila (the sister of PW 5 and the deceased), the accused in furtherance of their common intention to voluntarily cause hurt to the aforesaid brothers with dangerous weapons attacked them. A-1 pulled the deceased by catching hold of his legs, Nujum, A-2 stabbed him with MO 1 knife, A-4 cut him with MO 2 chopper. When PW 5 intervened to rescue the deceased, Musthafa, A-4 inflicted a cut injury on PW 5 with MO 2 chopper, A-2 inflicted a stab injury on Shuhra Beevi (PW 1) with MO 1 knife and Manzoor, A-3 assaulted PW 5 using his hands. The deceased succumbed to the injuries and injured PW 5 was admitted in the hospital. The accused

SHAJAHAN v. STATE OF KERALA (*Pasayat, J.*)

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thereby committed offences punishable under Sections 302 and 324 read with Section 34 IPC.

a 4. The allegations against them were as follows:

Shajahan, A-1 had caught hold the legs of the deceased facilitating A-2 for stabbing him. A-2 not only stabbed the deceased but also inflicted injuries on PW 1. Manzoor, A-3 assaulted the deceased. Musthafa, A-4 assaulted the deceased with the chopper and also caused injury on PW 5.

b 5. On considering the evidence of the witnesses more particularly the evidence of PW 1 and PW 5, the accused persons were found guilty as follows:

A-2 was guilty of offence punishable under Section 302 and Section 324 IPC. A-1, A-3 and A-4 were guilty for offences punishable under Section 323 read with Section 34 IPC. A-3 was a student and was released on probation for the conviction under Section 323 IPC.

c 6. In appeal, the High Court held that the accusations were established so far as A-1, A-3 and A-4 are concerned. It further held that it would be appropriate to convict A-2 for offence punishable under Section 304 Part II IPC instead of Section 302 IPC and custodial sentence of five years was awarded. The sentence awarded to A-2 in respect of Section 324 IPC was maintained.

d 7. In support of the appeal, learned counsel for the appellant submitted that the injuries on the accused were not explained. The investigating officer accepted that there were injuries but he did not focus the investigation on that aspect. Once the exercise of right of private defence was partially accepted, the conviction as recorded cannot be maintained.

e 8. Learned counsel for the appellants submitted that the incident took place in the property of the accused and the High Court accepted that up to a certain extent the right of private defence was exercised. But the High Court wrongly observed that the appellants continued the attack. Same is wrong as according to the factual position only one blow was given.

f 9. Learned counsel for the respondent State on the other hand supported the impugned judgment.

10. It is to be noted that during the pendency of the appeal Appellant 1 has expired. So the appeal stands abated so far as he is concerned. Appellant 3 i.e. Musthafa has already suffered the sentence and the appeal is not pressed so far as he is concerned.

g “6. We shall first deal with the question regarding non-explanation of injuries on the accused. Issue is if there is no such explanation, what would be its effect? We are not prepared to agree with the learned counsel for the defence that in each and every case where prosecution fails to explain the injuries found on some of the accused, the prosecution case should automatically be rejected, without any further probe. In *Mohar Rai v. State of Bihar*¹ it was observed: (AIR p. 1284, para 6)

h ¹ AIR 1968 SC 1281 : (1968) 3 SCR 525 : 1968 Cri LJ 1479

‘In our judgment the failure of the prosecution to offer any explanation in that regard shows that evidence of the prosecution witnesses relating to the incident is not true or at any rate not wholly true. Further those injuries probabilise the plea taken by the appellants.’ a

In another important case *Lakshmi Singh v. State of Bihar*² after referring to the ratio laid down in *Mohar Rai case*¹ this Court observed: (*Lakshmi Singh case*², SCC p. 401, para 12)

‘[W]here the prosecution fails to explain the injuries on the accused, two results follow: (1) that the evidence of the prosecution witnesses is untrue; and (2) that the injuries probabilise the plea taken by the appellants.’ b

It was further observed that: (*Lakshmi Singh case*², SCC p. 401, para 12)

‘[I]n a murder case, the non-explanation of the injuries sustained by the accused at about the time of the occurrence or in the course of altercation is a very important circumstance from which the court can draw the following inferences: c

(1) that the prosecution has suppressed the genesis and the origin of the occurrence and has thus not presented the true version;

(2) that the witnesses who have denied the presence of the injuries on the person of the accused are lying on a most material point and therefore their evidence is unreliable; d

(3) that in case there is a defence version which explains the injuries on the person of the accused it is rendered probable so as to throw doubt on the prosecution case. e

The omission on the part of the prosecution to explain the injuries on the person of the accused assumes much greater importance where the evidence consists of interested or inimical witnesses or where the defence gives a version which competes in probability with that of the prosecution one.’

7. ... But [non-explanation of the injuries sustained by the accused] may assume greater importance where the defence gives a version which competes in probability with that of the prosecution. But where the evidence is clear, cogent and creditworthy and where the court can distinguish the truth from falsehood the mere fact that the injuries are not explained by the prosecution cannot by itself be a sole basis to reject such evidence, and consequently the whole case. Much depends on the facts and circumstances of each case. These aspects were highlighted by this Court in *Vijayee Singh v. State of U.P.*³ f

8. Non-explanation of injuries by the prosecution will not affect the prosecution case where injuries sustained by the accused are minor and superficial or where the evidence is so clear and cogent, so independent g

² (1976) 4 SCC 394 : 1976 SCC (Cri) 671 h

³ (1990) 3 SCC 190 : 1990 SCC (Cri) 378 : AIR 1990 SC 1459

a and disinterested, so probable, consistent and creditworthy, that it outweighs the effect of the omission on the part of prosecution to explain the injuries. As observed by this Court in *Ramlagan Singh v. State of Bihar*⁴ prosecution is not called upon in all cases to explain the injuries received by the accused persons. It is for the defence to put questions to the prosecution witnesses regarding the injuries of the accused persons. When that is not done, there is no occasion for the prosecution witnesses to explain any injury on the person of an accused. In *Hare Krishna Singh v. State of Bihar*⁵ it was observed that the obligation of the prosecution to explain the injuries sustained by the accused in the same occurrence may not arise in each and every case. In other words, it is not an invariable rule that the prosecution has to explain the injuries sustained by the accused in the same occurrence. If the witnesses examined on behalf of the prosecution are believed by the court in proof of guilt of the accused beyond reasonable doubt, question of obligation of prosecution to explain injuries sustained by the accused will not arise. When the prosecution comes with a definite case that the offence has been committed by the accused and proves its case beyond any reasonable doubt, it becomes hardly necessary for the prosecution to again explain how and under what circumstances injuries have been inflicted on the person of the accused. It is more so when the injuries are simple or superficial in nature. In the case at hand, trifling and superficial injuries on accused are of little assistance to them to throw doubt on veracity of the prosecution case.” (See *Surendra Paswan v. State of Jharkhand*⁶, SCC pp. 363-64, paras 6-8 and *Anil Kumar v. State of U.P.*⁷)

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e 11. A bare perusal of the injury report shows that injuries were of very minor nature. The stand of the accused was that he was attacked by an iron rod but the injuries ruled out that stand. It is fairly conceded that there was no case instituted against the deceased or prosecution witnesses.

f 12. “10. [The only other question] which needs to be considered is the alleged exercise of right of private defence. Section 96 IPC provides that nothing is an offence which is done in the exercise of the right of private defence. The section does not define the expression ‘right of private defence’. It merely indicates that nothing is an offence which is done in the exercise of such right. Whether in a particular set of circumstances, a person legitimately acted in the exercise of the right of private defence is a question of fact to be determined on the facts and circumstances of each case. No test in the abstract for determining such a question can be laid down. In determining this question of fact, the court must consider all the surrounding circumstances. It is not necessary for the accused to plead in so many words that he acted in self-defence. If the circumstances show that the right of private defence was legitimately

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h 4 (1973) 3 SCC 881 : 1973 SCC (Cri) 563 : AIR 1972 SC 2593

5 (1988) 2 SCC 95 : 1988 SCC (Cri) 279 : AIR 1988 SC 863

6 (2003) 12 SCC 360 : 2004 SCC (Cri) Supp 415 : (2003) 8 Supreme 476

7 (2004) 13 SCC 257 : 2005 SCC (Cri) 178 : JT (2004) 8 SC 355

exercised, it is open to the court to consider such a plea. In a given case the court can consider it even if the accused has not taken it, if the same is available to be considered from the material on record. Under Section 105 of the Indian Evidence Act, 1872 (in short 'the Evidence Act'), the burden of proof is on the accused, who sets up the plea of self-defence, and, in the absence of proof, it is not possible for the court to presume the truth of the plea of self-defence. The court shall presume the absence of such circumstances. It is for the accused to place necessary material on record either by himself adducing positive evidence or by eliciting necessary facts from the witnesses examined for the prosecution. An accused taking the plea of the right of private defence is not necessarily required to call evidence; he can establish his plea by reference to circumstances transpiring from the prosecution evidence itself. The question in such a case would be a question of assessing the true effect of the prosecution evidence, and not a question of the accused discharging any burden. Where the right of private defence is pleaded, the defence must be a reasonable and probable version satisfying the court that the harm caused by the accused was necessary for either warding off the attack or for forestalling the further reasonable apprehension from the side of the accused. The burden of establishing the plea of self-defence is on the accused and the burden stands discharged by showing preponderance of probabilities in favour of that plea on the basis of the material on record. (See *Munshi Ram v. Delhi Admn.*⁸, *State of Gujarat v. Bai Fatima*⁹, *State of U.P. v. Mohd. Musheer Khan*¹⁰ and *Mohinder Pal Jolly v. State of Punjab*¹¹.) Sections 100 to 101 define the extent of the right of private defence of body. If a person has a right of private defence of body under Section 97, that right extends under Section 100 to causing death if there is reasonable apprehension that death or grievous hurt would be the consequence of the assault. The oft-quoted observation of this Court in *Salim Zia v. State of U.P.*¹² runs as follows: (SCC p. 654, para 9)

'It is true that the burden on an accused person to establish the plea of self-defence is not as onerous as the one which lies on the prosecution and that while the prosecution is required to prove its case beyond reasonable doubt, the accused need not establish the plea to the hilt and may discharge his onus by establishing a mere preponderance of probabilities either by laying basis for that plea in the cross-examination of prosecution witnesses or by adducing defence evidence.'

The accused need not prove the existence of the right of private defence beyond reasonable doubt. It is enough for him to show as in a civil case that the preponderance of probabilities is in favour of his plea.

⁸ AIR 1968 SC 702 : 1968 Cri LJ 806

⁹ (1975) 2 SCC 7 : 1975 SCC (Cri) 384 : AIR 1975 SC 1478

¹⁰ (1977) 3 SCC 562 : 1977 SCC (Cri) 565 : AIR 1977 SC 2226

¹¹ (1979) 3 SCC 30 : 1979 SCC (Cri) 635 : AIR 1979 SC 577

¹² (1979) 2 SCC 648 : 1979 SCC (Cri) 568 : AIR 1979 SC 391

11. The number of injuries is not always a safe criterion for determining who the aggressor was. It cannot be stated as a universal rule that whenever the injuries are on the body of the accused persons, a presumption must necessarily be raised that the accused persons had caused injuries in exercise of the right of private defence. The defence has to further establish that the injuries so caused on the accused probabilise the version of the right of private defence. Non-explanation of the injuries sustained by the accused at about the time of occurrence or in the course of altercation is a very important circumstance. But mere non-explanation of the injuries by the prosecution may not affect the prosecution case in all cases. This principle applies to cases where the injuries sustained by the accused are minor and superficial or where the evidence is so clear and cogent, so independent and disinterested, so probable, consistent and creditworthy, that it far outweighs the effect of the omission on the part of the prosecution to explain the injuries. (See *Lakshmi Singh v. State of Bihar*².) A plea of right of private defence cannot be based on surmises and speculation. While considering whether the right of private defence is available to an accused, it is not relevant whether he may have a chance to inflict severe and mortal injury on the aggressor. In order to find whether the right of private defence is available to an accused, the entire incident must be examined with care and viewed in its proper setting. Section 97 deals with the subject-matter of right of private defence. The plea of right comprises the body or property (i) of the person exercising the right; or (ii) of any other person; and the right may be exercised in the case of any offence against the body and in the case of offences of theft, robbery, mischief or criminal trespass and attempts at such offences in relation to property. Section 99 lays down the limits of the right of private defence. Sections 96 and 98 give a right of private defence against certain offences and acts. The right given under Sections 96 to 98 and 100 to 106 is controlled by Section 99. To claim a right of private defence extending to voluntary causing of death, the accused must show that there were circumstances giving rise to reasonable grounds for apprehending that either death or grievous hurt would be caused to him. The burden is on the accused to show that he had a right of private defence which extended to causing of death. Sections 100 and 101 IPC define the limit and extent of right of private defence.

12. Sections 102 and 105 IPC deal with commencement and continuance of the right of private defence of body and property respectively. The right commences, as soon as a reasonable apprehension of danger to the body arises from an attempt, or threat, or commit the offence, although the offence may not have been committed but not until there is that reasonable apprehension. The right lasts so long as the reasonable apprehension of the danger to the body continues. In *Jai Dev v. State of Punjab*¹³ it was observed that as soon as the cause for

¹³ AIR 1963 SC 612 : (1963) 1 Cri LJ 495

reasonable apprehension disappears and the threat has either been destroyed or has been put to route, there can be no occasion to exercise the right of private defence.

13. In order to find whether the right of private defence is available or not, the injuries received by the accused, the imminence of threat to his safety, the injuries caused by the accused and the circumstances whether the accused had time to have recourse to public authorities are all relevant factors to be considered. Similar view was expressed by this Court in *Biran Singh v. State of Bihar*¹⁴. (See *Wassan Singh v. State of Punjab*¹⁵ and *Sekar v. State*¹⁶.)

14. As noted in *Buta Singh v. State of Punjab*¹⁷ a person who is apprehending death or bodily injury cannot weigh in golden scales on the spur of moment and in the heat of circumstances, the number of injuries required to disarm the assailants who were armed with weapons. In moments of excitement and disturbed mental equilibrium it is often difficult to expect the parties to preserve composure and use exactly only so much force in retaliation commensurate with the danger apprehended to him where assault is imminent by use of force, it would be lawful to repel the force in self-defence and the right of private defence commences as soon as the threat becomes so imminent. Such situations have to be pragmatically viewed and not with high-powered spectacles or microscopes to detect slight or even marginal overstepping. Due weightage has to be given to and hypertechnical approach has to be avoided in considering what happens on the spur of the moment on the spot and keeping in view normal human reaction and conduct, where self-preservation is the paramount consideration. But, if the fact situation shows that in the guise of self-preservation, what really has been done is to assault the original aggressor, even after the cause of reasonable apprehension has disappeared, the plea of right of private defence can legitimately be negated. The Court dealing with the plea has to weigh the material to conclude whether the plea is acceptable. It is essentially, as noted above, a finding of fact.

15. The right of self-defence is a very valuable right, serving a social purpose and should not be construed narrowly. (See *Vidhya Singh v. State of M.P.*¹⁸) Situations have to be judged from the subjective point of view of the accused concerned in the surrounding excitement and confusion of the moment, confronted with a situation of peril and not by any microscopic and pedantic scrutiny. In adjudging the question as to whether more force than was necessary was used in the prevailing circumstances on the spot it would be inappropriate, as held by this Court, to adopt tests by detached objectivity which would be so natural in

¹⁴ (1975) 4 SCC 161 : 1975 SCC (Cri) 454 : AIR 1975 SC 87

¹⁵ (1996) 1 SCC 458 : 1996 SCC (Cri) 119

¹⁶ (2002) 8 SCC 354 : 2003 SCC (Cri) 16

¹⁷ (1991) 2 SCC 612 : 1991 SCC (Cri) 494 : AIR 1991 SC 1316

¹⁸ (1971) 3 SCC 244 : 1971 SCC (Cri) 469 : AIR 1971 SC 1857

a a courtroom, or that which would seem absolutely necessary to a perfectly cool bystander. The person facing a reasonable apprehension of threat to himself cannot be expected to modulate his defence step by step with any arithmetical exactitude of only that much which is required in the thinking of a man in ordinary times or under normal circumstances.

16. In the illuminating words of Russel (*Russel on Crime*, 11th Edn., Vol. I at p. 49):

b ‘... a man is justified in resisting by force anyone who manifestly intends and endeavours by violence or surprise to commit a known felony against either his person, habitation or property. In these cases, he is not obliged to retreat, and may not merely resist the attack where he stands but may indeed pursue his adversary until the danger is ended and if in a conflict between them he happens to kill his attacker, such killing is justifiable.’

c 17. The right of private defence is essentially a defensive right circumscribed by the governing statute i.e. IPC, available only when the circumstances clearly justify it. It should not be allowed to be pleaded or availed as a pretext for a vindictive, aggressive or retributive purpose of offence. It is a right of defence, not of retribution, expected to repel unlawful aggression and not as retaliatory measure. While providing for exercise of the right, care has been taken in IPC not to provide and has not been devised a mechanism whereby an attack may be a pretence for killing. A right to defend does not include a right to launch an offensive, particularly when the need to defend no longer survived.”

The above position was highlighted in *State of M.P. v. Ramesh*¹⁹, SCC pp. 709-13, paras 10-17.

e 13. Above being the position, the judgment of the High Court does not suffer from any infirmity to warrant interference. Therefore, the appeal is dismissed.

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f (BEFORE S.B. SINHA AND MARKANDEY KATJU, JJ.)

AMBARAM . . . Appellant;

Versus

STATE OF MADHYA PRADESH . . . Respondent.

Criminal Appeal No. 637 of 2007[†], decided on April 27, 2007

g A. Penal Code, 1860 — S. 34 [Ss. 302/34] — Appreciation of evidence — Accused (6 in number) alleged to have been drinking liquor and hurling filthy abuses — S (PW 9) merely asking them to behave, whereupon they started assaulting and throwing stones at her — Deceased (brother of S) when trying to intervene caught by accused — Appellant inflicting a blow on

¹⁹ (2005) 9 SCC 705 : 2005 SCC (Cri) 1443

h [†] Arising out of SLP (Crl.) No. 5006 of 2006. From the Final Judgment and Order dated 19-5-2006 of the High Court of Madhya Pradesh, Bench at Indore in Criminal Appeal No. 1239 of 1998